

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

GREGORY COWAN,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER RYAN PALMINTERI, Tax # 957001, POLICE OFFICER MICHAEL CADENA, SERGEANT JUAN CRUZ, Tax # 947906, SERGEANT KIADA N. MORAGNE, and POLICE OFFICERS JOHN DOES #1-10 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

Defendants.

----- X

SUMMONS

Index No.:

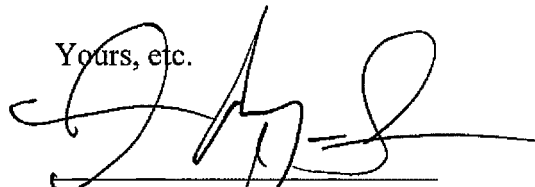
The Basis of Venue is:
Location of IncidentPlaintiff designates Kings
County as the place of trial.**JURY TRIAL DEMANDED****To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York

August 7, 2018

Yours, etc.



Elliot D. Shields

Roth & Roth, LLP
Counsel for Plaintiff
192 Lexington Avenue
Suite 802
New York, New York 10016
(212) 425 1020

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER RYAN PALMINTERI, Tax # 957001, 69th Precinct, 9720 Foster Ave,
Brooklyn, NY 11236
POLICE OFFICER MICHAEL CADENA, 69th Precinct, 9720 Foster Ave, Brooklyn, NY
11236
SERGEANT JUAN CRUZ, Tax # 947906, 69th Precinct, 9720 Foster Ave, Brooklyn, NY
11236
SERGEANT KIADA N. MORAGNE, 69th Precinct, 9720 Foster Ave, Brooklyn, NY
11236

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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GREGORY COWAN,

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

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Plaintiff, GREGORY COWAN, by his attorneys, ROTH & ROTH LLP, as and for his Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and the Constitution and common law of the State of New York. On May 10, 2017, at approximately 12:10 a.m., plaintiff, Gregory Cowan, while lawfully driving on the Belt Parkway near the vicinity of Erskine Street and Exit 15, Brooklyn, New York, was subject to an unlawful stop and search. Thereafter, Defendant New York City Police Department ("NYPD") Officers RYAN PALMINTERI and MICHAEL CADENA unlawfully stopped, seized, assaulted, battered, used excessive force, and falsely arrested Mr. Cowan. Thereafter, Defendants fabricated their reasons for stopping, seizing, using force against and arresting Mr. Cowan in official police paperwork, which they forwarded to prosecutors, and which would likely have influenced a jury, thereby violating Mr. Cowan's constitutional fair trial rights. Plaintiff was deprived of his

constitutional and common law rights when the individual defendants unlawfully stopped, seized, assaulted, battered, used excessive force against, unlawfully searched, searched, falsely arrested, falsely imprisoned, fabricated evidence against the plaintiff in violation of the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and the Constitution and common law of the State of New York.

PARTIES

2. Plaintiff GREGORY COWAN is a resident of Brooklyn, New York.

3. Defendant CITY OF NEW YORK ("CITY") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant CITY assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

4. Police Officer ("P.O.") RYAN PALMINTERI ("PALMINTERI") (Tax # 957001), P.O. MICHAEL CADENA ("CADENA"), and JOHN DOES # 1-10 (collectively "defendant NYPD officers") are and were at all times relevant herein, officers, employees and agents of the NYPD. The defendant police officers are being sued in their individual and official capacities.

5. SERGEANT ("SGT.") JUAN CRUZ ("CRUZ") (Tax # 947906), SGT. KIADA N. MORAGNE ("MORAGNE"), (collectively "supervisory defendants") are and were at all times relevant herein, officers, employees and agents of the NYPD. The supervisory defendants are being sued in their individual and official capacities.

6. Defendant NYPD officers and supervisory defendants collectively referred to as "defendant police officers."

7. The defendant NYPD officers are being sued in their individual and official capacities.

8. At all times relevant herein, the individual NYPD defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the Defendant CITY OF NEW YORK, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

9. The individual NYPD defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of plaintiff's rights.

10. At all relevant times, the individual defendants were engaged in joint ventures, assisting each other in performing the various actions described herein and lending their physical presence in support and the authority of their offices to one another.

11. Plaintiff, in furtherance of his State causes of action, filed a Notice of Claim against the CITY OF NEW YORK. The City held a 50-h hearing on January 26, 2018.

12. More than thirty (30) days have elapsed since said Notice of Claim was filed and the CITY OF NEW YORK has failed to pay or adjust the claim.

13. This action is being brought within a year and 90 days of the event giving rise to Plaintiff's State causes of action.

STATEMENT OF FACTS

14. On May 10, 2017, at approximately 12:10 a.m., Plaintiff, Gregory Cowan, was unlawfully pulled over by Defendants PALMINTERI and CADENA in the vicinity of Remsen Avenue and Avenue L, Brooklyn, New York.

15. After pulling over Plaintiff, PALMINTERI and CADENA ran his license and registration.

16. After running his license and registration, PALMINTERI and CADENA let Mr. Cowan go with a warning that "the next time we catch you speeding we'll give you a ticket."

17. Mr. Cowan thanked the officers and stated, "I was not speeding."

18. Mr. Cowan then continued towards JFK airport, where he worked.

19. Mr. Cowan entered the Belt Parkway from Rockaway Parkway and proceeded to lawfully drive towards JFK airport.

20. After driving approximately one mile on the Belt Parkway, Mr. Cowan was again unlawfully pulled over by PALMINTERI and CADENA.

21. After unlawfully pulling over Mr. Cowan, PALMINTERI and CADENA approached his driver's side door and ordered him to exit the vehicle.

22. CADENA threatened to shoot Mr. Cowan with a TASER if he did not exit the vehicle.

23. Mr. Cowan complied with the officers' orders and exited the vehicle with his hands in the air.

24. PALMINTERI and CADENA then unlawfully grabbed Mr. Cowan in a rough and aggressive manner and shoved him against the side of his vehicle.

25. PALMINTERI and CADENA then threw Mr. Cowan onto the pavement, without cause or legal justification.

26. PALMINTERI and CADENA then unlawfully and handcuffed Mr. Cowan without probable cause or legal justification.

27. After Mr. Cowan was handcuffed on the ground, PALMINTERI and CADENA proceeded to repeatedly punch, kick and strike him with a baton on his torso and legs, without probable cause or any legal justification.

28. After Mr. Cowan was handcuffed on the ground, CADENA repeatedly struck him on the body and legs with a baton.

29. PALMINTERI failed to intervene to stop and or prevent CADENA from unlawfully striking Mr. Cowan with the baton, despite having had the time and a realistic opportunity to do so.

30. PALMINTERI and CADENA then frisked and searched Mr. Cowan, and removed all the contents of his pockets, without probable cause or legal justification.

31. PALMINTERI and CADENA then searched inside of Mr. Cowan's vehicle without probable cause or legal justification.

32. PALMINTERI and CADENA did not recover any drugs, weapons, contraband or other illegal paraphernalia from Mr. Cowan's person, his vehicle, or from his custody, possession or control.

33. PALMINTERI and CADENA did not have an objective factual basis to believe Mr. Cowan committed a crime or violated the law in any way.

34. At no time did Mr. Cowan threaten PALMINTERI or CADENA with physical violence.

35. At no time did PALMINTERI or CADENA have an objective factual basis to reasonably fear that Mr. Cowan posed an imminent threat of physical violence.

36. At no time did Mr. Cowan resist arrest.

37. Nevertheless, Mr. Cowan was handcuffed, assaulted, battered, and placed under arrest by the defendant police officers without legal justification or probable cause.

38. At no time did Mr. Cowan commit any crime or violate the law in any way.

39. Nevertheless, PALMINTERI and CADENA unlawfully arrested Mr. Cowan without probable cause or legal justification.

40. PALMINTERI and CADENA unlawfully detained Mr. Cowan in the back of their NYPD vehicle on the Belt Parkway for approximately one hour.

41. During that approximately one hour, upon information and belief, Sergeant MORAGNE arrived on the scene and conspired with PALMINTERI and CADENA to falsely charge Mr. Cowan with various crimes he did not commit to cover up their violation of Mr. Cowan's rights.

42. Upon information and belief, MORANGE instructed PALMINTERI and CADENA to falsify their account of their interaction with Mr. Cowan in official police paperwork to cover up their violation of Mr. Cowan's rights

43. Thereafter, Mr. Cowan was transported to the NYPD's 69th precinct.

44. When plaintiff arrived at the 69th precinct, the officers took all his property, fingerprinted and photographed him, and then placed Mr. Cowan in a cell.

45. Thereafter, while still at the 69th precinct, the PALMINTERI and CADENA conferred with Sergeant CRUZ about the incident, and they conspired together to concoct a fabricated account of the reasons why PALMINTERI and CADENA stopped, arrested and used force against Mr. Cowan, which they recorded in official police paperwork, falsely stating that he had committed numerous crimes, including PL 120.25 (felony reckless endangerment), PL 205.30 (resisting arrest), PL 120.20 (Reckless Endangerment 2nd Degree), PL 190.05 (Obstruction of Governmental Administration 2nd Degree), VTL 1212 (misdemeanor reckless driving), and six other VTL violations.

46. Upon information and belief, CRUZ instructed PALMINTERI and CADENA to falsify their account of their interaction with Mr. Cowan in official police paperwork to cover up their violation of Mr. Cowan's rights

47. PALMINTERI, CADENA and CRUZ sent the paperwork that falsely accused Mr. Cowan of violating various Vehicle and Traffic Law and Penal Law provisions to the Kings County District Attorney's Office, despite knowing it contained facts and evidence they knew to be untrue, and which would likely influence the factfinder's determination of Mr. Cowan's guilt or innocence.

48. The Assistant District Attorney refused to charge Mr. Cowan with most of the penal law violations the police officers attempted to charge him with.

49. A criminal prosecution was initiated by defendants against Mr. Cowan without probable cause, and based upon the false communications to the District Attorney's Office by PALMINTERI, CADENA and CRUZ, for alleged violations of VTL 1163.B, VTL 1180.A, VTL 1128.A, PL 120.20, VTL 1129.A, PL 205.30, and VTL 1212.

50. PALMINTERI signed a Criminal Court Complaint that contained a fabricated account of the incident that led to Mr. Cowan's arrest, which was filed in Kings County Criminal Court, which formed the basis for the prosecution of Mr. Cowan for alleged violations of VTL 1163.B, VTL 1180.A, VTL 1128.A, PL 120.20, VTL 1129.A, PL 205.30, and VTL 1212.

51. After being detained at the 69th Precinct for approximately 8 hours, Mr. Cowan was transported to Kings County Central Booking.

52. After being detained at Kings County Central Booking for approximately 12 hours, Mr. Cowan was arraigned in Kings County Criminal Court.

53. At arraignment, Mr. Cowan was falsely charged with violations of VTL 1163.B, VTL 1180.A, VTL 1128.A, PL 120.20, VTL 1129.A, PL 205.30, and VTL 1212.

54. Mr. Cowan was released on his own recognizance on May 10, 2017 at approximately 9:00 p.m.

55. Mr. Cowan was detained for a total of approximately 20 hours in police custody.

56. Mr. Cowan hired a private criminal defense attorney and paid him approximately \$1,500.

57. After making approximately three appearances in criminal court, Mr. Cowan accepted an adjournment in contemplation of dismissal and all charges were dismissed in their entirety on September 14, 2017.

58. Some of the Defendant NYPD Officers observed the violation of Mr. Cowan's rights under the Constitutions of the United States and the State of New York, and state common law, but did nothing to prevent the unlawful seizure, assault, battery, excessive force, search, false arrest, false imprisonment, and fabrication of evidence against plaintiff.

59. The unlawful stop, assault, battery, use of excessive force, unlawful search, false arrest, false imprisonment, and fabrication of evidence against plaintiff by the Defendant NYPD Officers caused plaintiff to sustain physical, psychological and emotional trauma, and economic damages.

FIRST CLAIM FOR RELIEF**DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983**

60. Plaintiffs re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

61. All of the aforementioned acts of the Defendant CITY, and the Defendant NYPD Officers and their agents, servants and employees ("Defendants"), were carried out under the color of state law.

62. All of the foregoing acts by Defendants deprived Plaintiff of federally protected rights, including, but not limited to, the right:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from seizure and arrest not based upon probable cause;
- c. To freedom from being subjected to false criminal charges by the police;
- d. To freedom from excessive force;
- e. To freedom from being unlawfully searched by the police;
- f. To freedom from retaliatory prosecution;
- g. To the right to a fair trial;
- h. To freedom of speech and expression.

63. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

64. The acts complained of were carried out by the aforementioned Defendant NYPD Officers in their capacities as police officers with all of the actual and/or apparent authority attendant thereto.

65. The acts complained of were carried out by the aforementioned Defendant NYPD Officers in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of Defendant CITY and the NYPD, all under the supervision of ranking officers of said department.

66. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer economic injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damages to his reputation and standing within his community.

67. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

SECOND CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C. § 1983

68. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

69. One or more of the Defendant NYPD Officers, including but not limited to PALMINTERI and CADENA handcuffed and arrested plaintiff.

70. This arrest was made in the absence of a warrant for the arrest.

71. This arrest was made in the absence of probable cause for this arrest.

72. The Defendant NYPD Officers arrested plaintiff without having exigent circumstances for doing so.

73. There was no other authority for the arrest of plaintiff.

74. The plaintiff was conscious of this arrest.

75. The plaintiff did not consent to this arrest.

76. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer economic injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damages to his reputation and standing within his community.

77. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

THIRD CLAIM FOR RELIEF
FALSE ARREST UNDER NEW YORK STATE LAW

78. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

79. As a result of the aforesaid conduct by the Defendant CITY and the Defendant NYPD Officers, Plaintiff was unlawfully detained and confined.

80. The Defendant NYPD Officers—in performance of their duties with powers and authorities designated upon them by the Defendant CITY—intentionally confined Plaintiff.

81. Plaintiff was at all times consciously aware of his confinement by the Defendant NYPD Officers.

82. At no point throughout Plaintiff's unlawful detention and confinement by the Defendant NYPD Officers did Plaintiff consent to said confinement.

83. At no point throughout Plaintiff's unlawful detention and confinement by the Defendant NYPD Officers were the actions of the Defendant NYPD Officers otherwise privileged.

84. Defendant City is also liable to Plaintiff on the basis of *respondeat superior* as a result of the unlawful actions of the Defendant NYPD Officers as described herein.

85. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed.

86. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

FOURTH CLAIM FOR RELIEF
UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983

87. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

88. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

89. Defendants lacked probable cause to search plaintiff.

90. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the United States Constitution and the State of New York.

91. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer economic injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damages to his reputation and standing within his community.

92. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

FIFTH CLAIM FOR RELIEF

DENIAL OF THE RIGHT TO A FAIR TRIAL UNDER 42 U.S.C. § 1983

93. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

94. By deliberately manufacturing false evidence against Mr. Cowan, including police reports and other arrest paperwork containing the defendants' own fabricated accounts that Mr. Cowan was engaged in criminal activity, and forwarding that fabricated evidence to prosecutors, the Defendant NYPD Officers caused plaintiff to be arrested, detained, charged, and prosecuted, in violation of his rights pursuant to the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, to due process of law and to a fair trial, and are liable to plaintiff under 42 U.S.C. § 1983, for compensatory and punitive damages.

95. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer economic injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damages to his reputation and standing within his community.

96. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

SIXTH CLAIM FOR RELIEF

FAILURE TO INTERVENE under 42 U.S.C. § 1983

97. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

98. The Defendant NYPD Officers all had an affirmative duty to intervene on Plaintiff's behalf to prevent the violation of his constitutional rights by the other Defendant NYPD Officers.

99. The defendant police officers failed to intervene on Plaintiff's behalf despite having had realistic opportunities to do so.

100. The Defendant NYPD Officers failed to intervene on Plaintiff's behalf despite having substantially contributed to the circumstances within which plaintiff's rights were violated by their affirmative conduct.

101. PALMINTERI failed to intervene on Plaintiff's behalf to prevent and/or halt the violation of his rights and use of excessive force against him by CADENA.

102. CADENA failed to intervene on Plaintiff's behalf to prevent and/or halt the violation of his rights and use of excessive force against him by PALMINTERI.

103. MORAGNE failed to intervene on Plaintiff's behalf to prevent and/or halt the violation of his rights, including the false arrest and fabrication of evidence against Plaintiff, by PALMINTERI and CADENA.

104. CRUZ failed to intervene on Plaintiff's behalf to prevent and/or halt the violation of his rights, including the false arrest and fabrication of evidence against Plaintiff, by PALMINTERI and CADENA.

105. As a result of the aforementioned conduct of the Defendant NYPD Officers, Plaintiff's constitutional rights were violated.

106. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed.

107. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**SEVENTH CLAIM FOR RELIEF
NEGLIGENCE UNDER NEW YORK STATE LAW
(AGAINST THE CITY)**

108. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

109. Defendant City was negligent in the hiring and retention of the Defendant NYPD Officers as follows:

- A. Upon information and belief, Defendant City failed to use reasonable care in the hiring and retention of the Defendant NYPD Officers who conducted and participated in the acts of subjecting Plaintiff to an unlawful stop, unlawful seizure, unlawful search, false arrest, false imprisonment, denial of a fair trial, and who fabricated evidence against him and violated his constitutional rights in the manners described herein.
- B. Defendant City knew, or should have known in the exercise of reasonable care, the propensities of the aforesaid Defendant NYPD Officers to engage in the wrongful conduct heretofore alleged in this complaint.

110. Defendant the City was negligent in the training and supervision of the Defendant NYPD Officers as follows:

- A. Defendant City knew or should have known that the requirements, guidelines, and terms of its training for the defendant police officers were insufficient and inadequate regarding truthfully filling out paperwork, making arrest for the purpose of obtaining overtime pay, and to prevent the Defendant NYPD Officers from engaging in the wrongful conduct heretofore alleged in this complaint.

- B. Defendant City knew or should have known that the requirements, guidelines, and terms of its training for the defendant police officers were insufficient and inadequate regarding truthfully filling out and completing required police paperwork to document arrests and other interactions with citizens, and to prevent the defendant police officers from engaging in the wrongful conduct heretofore alleged in this complaint.
- C. Defendant City knew or should have known that the requirements, guidelines, and terms of its training for the Defendant NYPD Officers were insufficient and inadequate regarding properly handcuffing arrestees to ensure that said handcuffs are not applied in an excessively tight manner and to avoid causing injury.

111. Defendant the City was negligent in failing to discipline and take corrective action against the Defendant NYPD Officers as follows:

- A. Defendant the City knew or should have known that Defendant PALMINTERI had repeatedly made false arrests and falsified arrest paperwork for the purpose of obtaining overtime pay, but failed to reprimanded, suspended, retrain him on the use of force, or otherwise discipline PALMINTERI.
- B. Defendant the City knew or should have known that Defendant PALMINTERI had repeatedly falsified official police paperwork regarding his account of the reasons for arresting and/or using force against individuals and arrestees, but failed to reprimanded, suspended, retrain him on the use of force, or otherwise discipline PALMINTERI.
- C. Defendant the City knew or should have known that Defendant CADENA had repeatedly made false arrests and falsified arrest paperwork for the purpose of obtaining overtime pay, but failed to reprimanded, suspended, retrain him on the use of force, or otherwise discipline CADENA.
- D. Defendant the City knew or should have known that Defendant CADENA had repeatedly falsified official police paperwork regarding his account of the reasons for arresting and/or using force against individuals and arrestees, but failed to reprimanded, suspended, retrain him on the use of force, or otherwise discipline CADENA.

112. Defendant City is also liable to Plaintiff on the basis of *respondeat superior* as a result of the unlawful actions of the Defendant NYPD Officers as described herein.

113. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed.

114. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

EIGHTH CLAIM FOR RELIEF
SUPERVISORY LIABILITY under 42 U.S.C. § 1983

115. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

116. The supervisory defendants personally caused plaintiff's constitutional injuries by being deliberately or consciously indifferent to the rights of others in failing to properly supervise, train, and discipline their subordinate employees.

117. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed.

118. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

NINTH CLAIM FOR RELIEF
ASSAULT UNDER NEW YORK STATE LAW

119. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

120. PALMINTERI and CADENA rushed upon plaintiff, grabbed his body and hands, and placed handcuffs on his wrists in an excessively tight manner, threw him into the side of his car and on the ground, and struck him multiple times about the head, body and legs with their hands, feet and a police baton, despite not having reasonable or probable cause for his arrest.

121. By the aforescribed conduct, PALMINTERI and CADENA, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, and that such acts caused apprehension of such contact in the Plaintiff.

122. PALMINTERI and CADENA were at all times agents, servants, and employees acting within the scope of their employment by the Defendant CITY and the NYPD, which are therefore responsible for their conduct.

123. The Defendant CITY, as the employer of Defendant NYPD Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

124. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed.

125. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

TENTH CLAIM FOR RELIEF
BATTERY UNDER NEW YORK STATE LAW

126. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

127. PALMINTERI and CADENA rushed upon plaintiff, grabbed his body and hands, and placed handcuffs on his wrists in an excessively tight manner, threw him into the side of his

car and on the ground, and struck him multiple times about the head, body and legs with their hands, feet and a police baton, despite not having reasonable or probable cause for his arrest.

128. By the aforescribed conduct, PALMINTERI and CADENA, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner struck Plaintiff and handcuffed him without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

129. PALMINTERI and CADENA were at all times agents, servants, and employees acting within the scope of their employment by the Defendant CITY and the NYPD, which are therefore responsible for their conduct.

130. The Defendant CITY, as the employer of Defendant NYPD Officers, is responsible for their wrongdoing under the doctrine of respondeat superior.

131. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed.

132. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

ELEVENTH CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

133. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

134. PALMINTERI and CADENA roughly seized and handcuffed plaintiff without probable cause for his arrest.

135. PALMINTERI and CADENA rushed upon plaintiff, grabbed his body and hands, and placed handcuffs on his wrists in an excessively tight manner, threw him into the side of his car and on the ground, and struck him multiple times about the head, body and legs with their hands, feet and a police baton, despite not having reasonable or probable cause for his arrest.

136. The level of force employed by PALMINTERI and CADENA against plaintiff was objectively unreasonable.

137. The force employed by PALMINTERI and CADENA against plaintiff did not advance any proper governmental objective.

138. As a result of the aforementioned conduct of the Defendant NYPD Officers, plaintiff suffered and sustained physical injuries.

139. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed.

140. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

PLAINTIFF'S INJURIES AND DAMAGES

141. As a direct and proximate consequence of the aforementioned actions by the defendants, plaintiff:

- a. Suffered an unlawful detention and loss of freedom for approximately one day;
- b. Suffered and continues to suffer mental and emotional distress and harm;
- c. Was publicly shamed, disgraced, ridiculed and humiliated and suffered damage to reputation;

- d. Had to pay approximately \$1,500.00 and incur debts for the costs of his legal defense;
- e. Had his driver's license suspended;
- f. Lost substantial employment income and permanent impairment of earning power; and
- g. Incurred other items of attendant damages.

WHEREFORE, and in light of the foregoing, it is respectfully requested that the Court assume jurisdiction and:

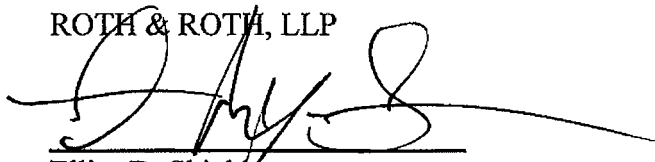
- a. Empanel a jury;
- b. Award compensatory and punitive damages awards, each in the separate amounts of \$2,000,000, or such greater amounts as may be set by a jury;
- c. A court order, pursuant to 42 U.S.C. §1988, that the plaintiffs are entitled to the costs involved in maintaining this action and attorneys' fees;
- d. Award appropriate declaratory and injunctive relief;
- e. The plaintiff demands the foregoing relief jointly and severally against all of the defendants, except that the punitive damages demands are, as a matter of law, not recoverable against a municipality and therefore are not made against the City;
- f. Such other and further relief as this court may deem just and proper.

Dated: New York, New York
August 7, 2018

Respectfully Submitted:

ROTH & ROTH, LLP

By:


Elliot D. Shields

Roth & Roth, LLP

Counsel for Plaintiff

192 Lexington Avenue

Suite 802

New York, New York 10016

(212) 425 1020

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER RYAN PALMINTERI, Tax # 957001, 69th Precinct, 9720
Foster Ave, Brooklyn, NY 11236
POLICE OFFICER MICHAEL CADENA, 69th Precinct, 9720 Foster Ave,
Brooklyn, NY 11236
SERGEANT JUAN CRUZ, Tax # 947906, 69th Precinct, 9720 Foster Ave,
Brooklyn, NY 11236
SERGEANT KIADA N. MORAGNE, 69th Precinct, 9720 Foster Ave,
Brooklyn, NY 11236

ATTORNEY'S VERIFICATION

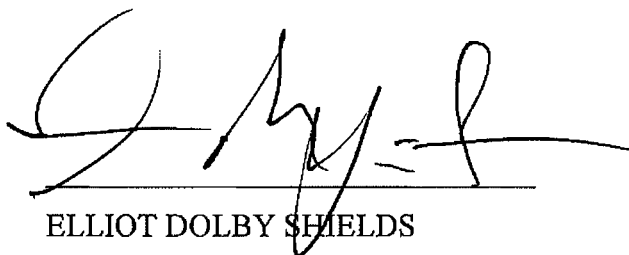
ELLIOT DOLBY SHIELDS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am associated with Roth & Roth LLP, attorneys for the plaintiff herein, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is being made by me is because the Plaintiff does not reside in the County where I maintain my office.

DATED: New York, New York

August 7, 2018



ELLIOT DOLBY SHIELDS